

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: [Republic of Korea](#)

Organization or entity responsible for the preparation of the report:
[Ministry of Education](#)

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☐ Yes

■ [No: Does your country plan to ratify this instrument?](#)

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

■ [Under preparation](#)

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

☐ *the obstacles, whether legal, institutional, political or practical*

☐ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

■ Legal and institutional efforts are needed to achieve universal education at the stage of early childhood education. Daycare centers (childcare facilities) and kindergartens (educational institutions) are currently separated, and these systems need to be integrated for Early Childhood Care and Education (ECCE). Further efforts are also needed to increase access (e.g. expanding the number of national/public kindergartens, subsidizing tuition fees for private kindergartens, and limiting the rate of increase on tuition fees in private kindergartens).

■ In terms of guaranteeing education rights for social minority groups, efforts need to be made to raise awareness of the need for inclusive education for special education targets and to internalize and fulfil this need at a societal level, beyond the guarantee at the legal and institutional level.

■ Further appropriate solutions are needed in terms of building infrastructure for the elimination of discrimination in education, such as: establishing an educational safety net for vulnerable groups in education (e.g. immigrant students), forming a social consensus on human rights issues in education (e.g. ordinances for students and teachers), and providing an institutional strategy for bridging gaps between regions and social groups in terms of lifelong education.

- ☐ No, not considering ratification in the near future. Please explain why:

2. Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

- ☐ Yes

■ No, please briefly explain the difficulties encountered:

■ Differences in opinions regarding the integration of the legal and financial systems for the current early child care system (for 0-2 year olds) and the early education system (for 3-5 year olds)
■ Conflict of opinions on plans to subsidize private school fees (to address educational gaps)
■ Social tension related to multicultural society (e.g. racial/ethnic divisions and alienation)
■ Controversy concerning reverse discrimination in support policies that target vulnerable groups in education

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☒ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

■ In terms of guaranteeing education rights for all, the Constitution of the Republic of Korea (Article 31) assures the right of all citizens to be equally educated. The Framework Act on Education (Article 4) indicates that no citizen shall be treated with discrimination in education for reasons of gender, religion, faith, race, social standing, economic status, or physical conditions, etc. Regarding ECCE, the Child Care Act (Article 4) specifies the responsibility of the State and local governments for child care.

- The Early Childhood Education Act (Article 11) states that local governments must guarantee equal opportunities for early childhood education. According to the Elementary and Secondary Education Act (Article 13), every citizen shall send their sons and daughters, and children under his or her care to an elementary school from March 1 of the year following the year in which they reach six years of age, and have them attend elementary school until they graduate from it.
- Amendments have been made to Article 10-2 of the Elementary and Secondary Education Act providing that: 1. From the 2020 school year, education shall be available free for students in the second and third year of high school; 2. From the 2021 school year, education shall be available free for students in all years of high school.
- In the Lifelong Education Act, Article 4 specifies that all citizens shall be guaranteed equal opportunities for lifelong education. Article 5 of this act indicates that the State and local governments shall provide all people with opportunities to participate in lifelong education; in particular, the State and local governments shall formulate and implement lifelong education policies for people with disabilities so that people with disabilities can be given opportunities for lifelong education.

■ In terms of guaranteeing the right of education for students with disabilities, the Act on Special Education for Persons with Disabilities, etc. (Article 3) specifies that compulsory kindergarten, elementary school, middle school and high school education, education in a person's major field of study, and education for disabled infants who have not reached a full three years of age shall be provided free for those eligible for special education; also, it states that expenses incurred in compulsory education and education that must be provided for free shall be paid by the State or local government.

- The Act on Welfare Support for Children with Disabilities (Article 4) specifies that a disabled child shall be provided with opportunities for education and training to improve his/her abilities to communicate, make decisions on his/her own, and advocate for

his/her rights. Under Article 22 of this Act, the State or local governments may pay infant care allowances to disabled children who do not attend a nursery school or a kindergarten.

- According to the Act on Welfare of Persons with Disabilities (Article 20), the State and local governments shall take necessary measures to upgrade educational methods and content, etc. so that persons with disabilities can be sufficiently educated in accordance with their age, capabilities, and type and degree of disability under the principle of social integration. Article 20 also states that measures should be taken to ensure that no person with disabilities suffers a disadvantage, such as being denied the right to apply to a school, or denied admission to a school even if he/she has passed the entrance examination, on the grounds of his/her disability. Pursuant to the Act on the Prevention of and Countermeasures against Violence in Schools (Article 16-2), no one shall commit violence against a disabled student in school on the grounds of his/her disability.

■ To guarantee the right of education for students with multicultural backgrounds, the Multicultural Families Support Act (Article 10) specifies that the State and local governments shall endeavour to support preschool care and education services for members of multicultural families under 18 years of age, and may provide assistance necessary for to help them improve their linguistic proficiency, such as teaching materials and learning support for the study of the Korean language and the mother tongue of their marriage-migrant father or mother; in particular, principals of daycare centers, heads of kindergartens, heads of all types of schools, and heads of other organizations shall take necessary measures in providing care and education services for children and juveniles to prevent children and juveniles of multicultural families from being discriminated against.

- In the Refugee Act, Article 33 states that, where a recognized refugee or his/her child is a minor under the Civil Act, he/she shall receive the same elementary education and secondary education as South Korean citizens. Also, this article specifies that the Minister of Justice may support recognized refugees to receive necessary education in consideration of their age, learning ability, educational conditions, etc. Article 43 of the Refugee Act indicates that an applicant for refugee status and a minors whose family are not South Korean citizens may receive the same level of elementary education and secondary education as that of South Korean citizens.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

■ Policies to realize universal education at the stage of early childhood education include: 1) implementation of the Nuri Curriculum, the national common curriculum for all three to five-year-olds), 2) subsidizing childcare fees for infants and toddlers aged 0-5 who attend daycare centres, 3) subsidizing after-school childcare fees for children from lower-income families and disabled children who attend after-school daycare centres for more than 4 hours per day, 4) providing child benefit payments for children under the age of 7 with South Korean nationality, including those with multiple nationalities according to the Nationality Act as well as those recognized as refugees according to the Refugee Act (100,000 KRW for each child per month).

■ Policies to ensure the right to education for social minorities include: provision of disabled child benefit (paid by the State and local government to help defray additional expenses incurred as a result of the child's disability, taking into consideration the economic standard of living of the child's guardian and the degree of the child's disabilities); services in relation to special education (support for families, support for treatment, support for assistants, support for commutes to school, support for

supplementary learning equipment, etc.); subsidies for daycare fees for children aged 0-5 from multicultural families; Multicultural Education Support Centers; Multicultural Family Support Centers (support in relation to education and counseling for multicultural families, Korean language training for immigrants married to Koreans, etc.). Where multiple support provisions may apply, statutory exemptions from tuition fees for students with disabilities take priority over the payment of educational benefits.

■ Policies to close gaps in terms of lifelong learning opportunities include: Lifelong Learning Vouchers (approximately KRW 350,000/person can be provided annually to those aged 19 and over who are recipients of the national basic living allowance or in lower income groups, in order to ensure their ability to access lifelong learning opportunities); operating the National Center for Adult Literacy Education (support for adult literacy education), operating the National Institute for Lifelong Learning for Persons with Disabilities (conducting research and developing programmes in relation to lifelong learning for persons with disabilities); establishing Lifelong Learning Cities (providing comprehensive on/off-line support systems for lifelong learning and customized lifelong learning opportunities for social integration); encouraging universities to offer lifelong education.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

■ [Constitutional laws and/or legislation prohibit discrimination in education](#)

■ [Regulations prohibit discrimination in education](#)

■ [Policies and programmes aim to eliminate and prevent discrimination in education](#)

■ [Access to justice in case of violations of the right to non-discrimination in education](#)

■ [Combatting discrimination in terms of curriculum](#)

☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

- ☐ *Non-discrimination in the admission of pupils to educational institutions*
- ☐ *Non-differential treatment, including of foreign nationals resident in your country*

■ **Laws in relation to non-discrimination**

- Article 2.3. of the National Human Rights Commission Act guarantees non-discrimination on the grounds of sex, religion, disability, age, social status, region of origin, state of origin, nation of origin, physical conditions such as features, skin color, etc. The article also forbids any act of favorable treatment, exclusion, discrimination against or unfavorable treatment of a particular person with regard to education, training, and use of educational facilities or vocational training institutions.
- Article 4 (Equal Opportunities in Education) of the Framework Act on Education stipulates that no citizen shall be treated with discrimination in education for reasons of gender, religion, faith, race, social standing, economic status, or physical conditions, etc.
- Article 10 (Care and Education for Children and Juveniles) of the Multicultural Families Support Act stipulates that in providing care and education services for children and juveniles neither the State nor local governments shall discriminate against any child or juvenile from a multicultural family.
- Article 10 (Safeguarding the Human Rights of Foreigners, etc. in the Republic of Korea) of the Framework Act on Treatment of Foreigners Residing in the Republic of Korea stipulates that the State and local governments shall endeavor to take necessary measures, such as the implementation of education and publicity activities, to prevent unreasonable discrimination against foreigners and their children in the Republic of Korea and to safeguard their human rights.
- Article 5 (Rights and Responsibilities of Youth) of the Framework Act on Juveniles forbids any form of discrimination against youth on the basis of their race, religion, gender, age, academic background, physical conditions, etc.

■ **Laws prohibiting discrimination in terms of admission to education institutions**

- Article 4 (Prohibition of Discrimination) of the Act on Special Education for Persons with Disabilities, Etc. forbids discrimination against persons with disabilities in educational opportunities, such as the refusal of an application for admission or refusal to admit a person who has passed the admission test, on the grounds of the applicant's disability.
- Article 13 (Prohibition of Discrimination) of the Act on the Prohibition of Discrimination against Persons with Disabilities, Remedy against Infringement of Their Rights, Etc. stipulates that no education officer may refuse admission, or an application for admission of any person with a disability or compel him/her to transfer to another school. In addition no daycare center or school at any level may refuse to accept a transfer of a person with disabilities to such educational institution.

■ **Content in the school curriculum about the prohibition of discrimination**

- The Elementary School Curriculum revised in 2015 includes 10 main themes, one of which is human rights education. This theme emphasizes human dignity and respect for human rights such as non-discrimination against persons with disabilities, gender-equality, labor rights, etc. In terms of multicultural education, which is another main theme, the curriculum emphasizes respect for diversity following increases in the numbers of multicultural families and foreign workers.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

■ Constitutional laws and/or legislation guarantee equal access to education

■ Regulations ensure equal access to all levels and types of education

■ Policies and programmes ensure equal access to all levels and types of education

☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b

■ Article 28 (Education for Students with Learning Disabilities) of the Elementary and Secondary Education Act stipulates that the head of a school shall give a student showing signs of wanting to drop out of school, or a student who has expressed an intention to drop out of school, an opportunity to reconsider doing so. In such cases, the head of a school may formally consider the student to have attended school during the reconsideration period. In addition, article 3 (Obligations of the State and Local Governments) of the Act on Support for Out of School Juveniles stipulates that the State and local governments shall take necessary measures, such as investigation, research, education, and campaigns, in order to protect out-of-school juveniles from social discrimination and prejudice, and ensure respect and understanding for out-of-school juveniles.

■ Article 13 (Counseling and Education) of the Youth Welfare Support Act stipulates that the State and local governments may provide counseling and education for families and guardians of youth in crisis to provide efficient and appropriate support for such youth. Article 18 (Support for Youth with Immigrant Background) of the same Act also stipulates that the State and local governments shall establish and implement necessary policies, including counseling and education, to help youth from any multicultural family, as defined in subparagraph 1 of Article 2 of the Multicultural Families Support Act, or immigrant youth who experience difficulties in social adaptation and academic performance, to adapt to society and improve their academic capability.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|---|
| ■ <u>Providing financial incentives and fellowships</u> | ■ <u>Providing auxiliary assistance</u> |
| ■ <u>Providing positive or affirmative action measures</u> | ■ <u>Adapting education infrastructure</u> |
| ■ <u>Ensuring inclusion in mainstream schools for all learners</u> | ■ <u>Adapting curricula and methods</u> |
| ■ <u>Training teachers on inclusive education</u> | ■ <u>Providing language classes to newcomers</u> |
| ■ <u>Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)</u> | ■ <u>Eliminating administrative barriers to education⁶</u> |
| □ Providing re-entry programmes for young mothers | ■ <u>Providing flexible learning pathways</u> |
| ■ <u>Eliminating all barriers for pregnant girls or young mothers in education</u> | □ Valuing diversity in schools |
| □ Other: | ■ <u>Combatting stereotyping and stigmatisation</u> |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

■ Measures to ensure gender equality

- Article 26 of the National Human Rights Commission Act stipulates that the Commission shall conduct education and promotional activities necessary to awaken and enhance everyone's awareness of human rights; and in particular, that the Commission may consult with the Minister of Education in order for content on human rights to be included in school curricula. It also states that the Commission may consult with the heads of State agencies or local governments in order for human rights-related content to be included in employment or promotion examinations and training or education courses for public officials.

- Article 17-2 (Advancement of Equality of Education of Males and Females) of the Framework Act on Education stipulates that the State and local governments, and founders or managers of schools or institutions for social education, shall not practise discrimination, such as restricting or excluding participation or benefits on the grounds of gender, without any reasonable grounds, when providing education. In addition, Article 17-4 (Cultivation of Healthy Gender Consciousness) of the same Framework Act stipulates that the State and local governments shall establish and implement policies necessary for protecting the dignity of students' gender and to cultivate healthy sentiments relating to gender; and that such policies shall include educational programs to respect the dignity and character of individual students, and plans for the provision of education and amenities that take account of male and female gender characteristics.

- Article 18 (Gender Responsive Education) of the Framework Act on Gender Equality stipulates that the State and local governments shall provide education to their public officials, etc., to increase their ability to recognize the impacts of statutes, policies, customs, and other systems on men and women in all areas of society ("gender responsive education"). Article 36 (Gender Equality Education) of the same Framework Act also stipulates that State and local governments shall strive to promote education that enhances gender equality both within the family and at school; and that the State and local governments shall strive to ensure that training courses run by national and public training institutions and lifelong education institutions, as well as other training and education courses, will provide education that enhances awareness about gender equality.

- The Framework Act on Gender Equality and its Enforcement Decree include diverse measures that have been taken to promote gender equality in and through education, such as the Fact-Finding Survey on Gender Equality, Gender Equality Council, Working Committee on Gender Equality, Subcommittees on Gender Equality, designation of officials in charge of gender equality, National Gender Equality Index, Women's Day and Gender Equality Week, designation of Women-Friendly Cities, and Female Workforce Development Centers.

- Article 19 (Education to Prevent Violence against Women) of the Framework Act on Prevention of Violence against Women stipulates that the Minister of Education and Governor of Education of each province shall establish and implement policies at kindergartens and schools to enhance understanding of violence against women and to provide education to prevent it.

- Article 29 (Prevention of Gender Discrimination) of the Act on the Prohibition of Discrimination against Persons with Disabilities, Remedy against Infringement of Their Rights, Etc. also stipulates that rights relating to gender shall be respected for all persons with disabilities; and that the State and local governments shall conduct awareness-raising activities and education to eliminate all disability-based prejudices and customs relating to gender, as well as all other discriminatory practices. Article 33 (Prevention of Discrimination against Women with Disabilities) of the same law stipulates that the State and local governments shall not discriminate against women with disabilities on the basis

of their disability in any aspect of life; and that persons in charge of sexual violence prevention programs at educational institutions, workplaces, welfare facilities, etc. shall include in such programs gender awareness in relation to women with disabilities and prevention of sexual violence against them; however, such programs shall not distort the image of women with disabilities.

- In order to promote gender equality, the Ministry of Education launched the 6th Deliberation Committee for Equal Education of Males and Females on December 6, 2019. At the level of primary and secondary education, the Committee carries out a variety of policy measures, including revision and distribution of the Gender Equality Examination Index; development and distribution of comprehensive teaching guidelines on gender equality; training for on-site teaching support staff on human rights and gender equality; and running pilot schools for gender equality measures. At the level of higher education, the Committee carries out policy measures such as assessment and examination of gender equality in public universities and dissemination of best practices. Revisions are currently in the process of being made to the Educational Officials Act to ensure that the appointment of teaching staff in public universities does not unduly favor either gender.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes No ☐

Please provide reference to the relevant laws and provisions:

■ Pursuant to article 807 (Marriageable Age) of the Civil Act, any person who is eighteen years old or older may enter into matrimony. Article 808 (Marriage Requiring Consent) of the same Act stipulates that a minor shall obtain the consent of both parents in order to marry. If one parent is unable to exercise the right of consent, the minor shall obtain the consent of the other parent, and if neither parent is able to exercise the right of consent, the minor shall obtain the consent of his/her guardian. An adult ward may marry upon obtaining the consent of his/her parents or adult guardian. Article 826-2 (Attaining Majority by Marriage) of the same Act states that, if a minor enters into marriage, he/she shall be deemed to have attained majority.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁷. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

⁷

Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

ECCE is not compulsory education.

■ Pre-primary education is free of charge for all: Please provide the duration:

Free ECCE is provided to 0-5 year olds.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

■ Laws guaranteeing the provision of ECCE

- Article 3 (Concept of Infant Care) and article 4 (Responsibility) of the Child Care Act; along with article 3 (Responsibilities) and article 11 (Entering Kindergarten) of the Early Childhood Education Act provide that infants should have equal rights to education without any kind of discrimination, stipulating the responsibilities of the State, local governments and the protectors of the infants.

- Based on article 34 (Free Infant Care) of the Child Care Act and article 24 (Free-of-Charge Education) of the Early Childhood Education Act, early childhood care and education are provided for free.

■ Difficulties in the realization of universal access to pre-primary education

- In order to ensure all 3 to 5 year-olds have equal opportunities for education, a common education curriculum, the Nuri Curriculum, was implemented in 2013. Free education has been implemented by the government providing support to cover expenses relating to kindergarten education and daycare center childcare fees for all children in the 3 years immediately prior to their entering primary school, regardless of the income level of their parents. The Republic of Korea is formally providing the same level of government support to all children for their education and childcare. However, for children educated in private kindergartens, additional expenses tend to be incurred beyond the educational expenses covered by the government. The government intends to expand financial support in stages.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

■ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

■ Duration of compulsory primary education: 6 years

■ The age of enrolment: 6 years old

■ Age of students attending primary school: 6 to 11 years old

■ Since the establishment of the Framework Act on Education in 1949, primary education has been compulsory education. The government does not experience any special difficulties in realizing universal access. As of 2019, the rate of enrollment is 98.7%.

- Is primary education available free of charge to all?

■ **Yes:** Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

■ **Laws ensuring the universal and free availability of primary education**

- Article 31 of the Constitution of the Republic of Korea ensures all citizens' equal right to receive an education corresponding to their abilities. It also states that elementary education is compulsory education and free of charge. Article 8 (Compulsory Education) of the Framework Act on Education also provides that elementary education should be six years of compulsory education.

■ **Direct/indirect costs**

- In the case of public elementary schools, tuition fees are not charged. However, there exist expenses that are charged to beneficiaries of specific services, such as tuition fees for after-school activities, expenses for field trips etc.

- In the case of private elementary schools, while a part of the tuition fees is subsidized by the government, the remainder of the tuition fees is payable by the parents of the students. As in the case of public school, charges are also made to beneficiaries of specific services.

☐ **No:** Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

● Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

■ **Yes (middle school education):** Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

■ **Duration and scope of free secondary education**

- Compulsory middle school education is provided for 3 years, free of charge. As of 2019, the rate of enrollment is 96.7%.

- Although high school education is not compulsory, since 2019, the government has been expanding free high school education by stages. In 2021, all three years of high school education will be provided for free.

- Laws and policies that ensure the free availability of secondary education
 - Based on article 8 (Compulsory Education) of the Framework Act on Education, three years of secondary education (middle school education) is ensured as compulsory education. Article 31 of the Constitution of the Republic of Korea states that compulsory education is free of charge.
 - Article 10-2 (Free High School Education) ensures free high school education, stipulating that admission fees, tuition fees, school operation support fees, and expenses for purchasing textbooks shall be covered free of charge.
- Direct and indirect costs
 - In the case of public middle and high schools, tuition fees and school operation support fees are fully subsidized by the government. However, parents must cover expenses for specific services that are directly beneficial to their children.
 - In the case of middle and high schools, tuition fees and school operation support fees are partly subsidized by the government, but the remainder of the costs must be covered by parents. Parents should also cover expenses for specific services that are directly beneficial to their children.

- No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

■ [Yes \(middle school education\)](#) ■ [No \(high school education\)](#)

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

- Duration of compulsory secondary education and age of enrolment
 - Only middle school education is compulsory. High school education is not compulsory.
 - Duration of compulsory secondary education (middle school): 3 years
 - Age of enrolment: 12 years old
 - Age of students attending middle school: from 12 to 14 years old
- Difficulties in the realization of universal access to secondary education
 - High school education has not yet been made compulsory education. However, having overcome the difficulties of securing financial resources, free high school education is to be gradually expanded from 2019 to 2021, paving the way for realizing compulsory education at the level of high school education.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

■ [Yes](#) No □

- Please provide reference to the relevant laws and provisions:

- Laws in relation to minimum age of employment and completion of compulsory education
 - Article 64 (Minimum Age and Employment Permit Certificate) of the Labor Standards Act stipulates that a minor under the age of 15 shall not be employed in any work, indicating that the laws regarding minimum age of employment and those regarding completion of compulsory education are related to each other.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁸, and target 4.4⁹.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹⁰ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- Regulations prohibit discrimination in higher education, including technical and vocational education and training
- Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ☐ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ☐ *Non-differential treatment, including of foreign students*

■ Legal, regulatory or policy measures which forbid discrimination in admission to higher education institutions.

1. Laws

- Most comprehensively, article 31 of the Constitution of the Republic of Korea stipulates that all citizens shall have an equal right to receive an education corresponding to their abilities; and article 4 (Equal Opportunities in Education) of the Framework Act on Education stipulates that no citizen shall be treated with discrimination in education for reasons of gender, religion, faith, race, social standing, economic status, or physical conditions, etc.

⁸ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁹ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹⁰ See: Article/Paragraph 1(1).

- There are also some laws specifying non-discrimination in the admission to higher education institutions of students from specific minority groups.

1) Article 17-2 (Advancement of Equality of Education of Males and Females) of the Framework Act on Education stipulates that the State and local governments, and founders or managers of schools or institutions for social education, shall not, when providing education, practise discrimination, such as restriction of or exclusion from participation or benefits on the grounds of gender, without reasonable grounds.

2) Article 4 (Prohibition of Discrimination) of the Act on Special Education for Persons with Disabilities, Etc. stipulates that when a person eligible for special education desires to enter a school, the head of such school/ university shall not discriminate against him/her in provision of educational opportunity, such as by denying the right to apply for admission or refusing to admit a person who has passed the admissions test, for reasons of his/her disability.

3) Article 10 (Care and Education for Children and Juveniles) of the Multicultural Families Support Act stipulates that neither the State nor local governments shall discriminate against children or juveniles of any multicultural family in the provision of care and education services for children and juveniles.

2. Policies

- Assessment of the real situation regarding educational welfare support for university students with disabilities: This assessment is carried out every 3 years in order to improve educational conditions for university students with disabilities. The assessment covers three areas -- admissions, teaching/learning, and facilities.

- Special screening system for university admission: A number of universities have a special screening system for admissions of students with disabilities, students from multicultural families, etc. beyond the designated quota.

- Promotion of gender equality policies: The Ministry of Education established the 6th Deliberation Committee for Equal Education of Males and Females on December 6, 2019. It assesses and examines gender equality in public universities and disseminates best practices. Additionally, the Legislation and Judiciary Committee of the National Assembly has passed a revision of the Educational Officials Act to ensure that the appointment of teaching staff in public universities does not unduly favor either gender.

■ Anti-discriminatory measures for foreign students

- There are no legal, regulatory or policy texts specifying non-discrimination toward foreign students.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

☐ Higher education is generally free of charge

■ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience

■ Higher education is accessible through financial incentives and scholarships

■ Higher education is accessible through positive or affirmative action measures

☐ Higher education is accessible through credit transfer system between states

■ Other:

The credit exchange system in the Republic of Korea is based on the exchanges between schools, not between states.

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

■ Financial costs of education in higher public or private education institutions

- In general, higher education in the Republic of Korea is not free of charge. According to 2019 public disclosure information, the average annual tuition per student is approximately KRW 4,160,000 for national/public universities (total for a four-year-course); and approximately KRW 7,460,000 for private universities (total for a four-year-course).

■ Measures to promote access to higher education

- Article 31.1 of the Constitution of the Republic of Korea and Article 31 (Selection of Students) of the Enforcement Decree of the Higher Education Act provide that all people should have an equal right to education according to their abilities, in terms of student admissions.

- In order to lighten the financial burden for students and to enhance access to higher education, various scholarships are provided by education institutions, the State, local governments, etc. According to 2019 public disclosure information, the average amount of annual scholarship funds awarded to a student on a four-year university course is approximately KRW 2,700,000 at national/public universities and approximately KRW 3,510,000 at private universities.

■ Affirmative action in relation to access to higher education

- With regard to access to higher education, non-discriminatory measures are mostly aimed at persons with disabilities. Representative measures include legal measures (such as article 4 of the Act on Special Education for Persons with Disabilities, Etc.), special screening systems in university admissions, and assessment of educational welfare support provided in practice for university students with disabilities. In addition, a number of universities have special screening systems for the admission of persons with disabilities, students from multicultural families, etc. beyond the designated quota. A special screening process for students from rural communities ("farming, mountain and fishing towns") also exists in the admission system, in order to close gaps in opportunities caused by social and economic differences.

■ Credit exchange programme

- A number of universities run a credit exchange programme, allowing students to learn from other universities as well as their own. Credit exchange programmes and/or student exchange programmes are also run with universities in different countries, enabling Korean students to study abroad and foreign students to study in Korea.

■ Difficulties experienced by the government with regard to increasing access to higher education

- In terms of financial support, the government has frozen tuition and expanded scholarships for higher education in order to lighten the load for students. These measures have become the most prominent higher education policies, and a considerable proportion of higher education budgets has been spent on the national scholarship programme. The downside of such policies is that, when combined with the decrease in the number of students, they have led to universities complaining of financial difficulties.

- In relation to anti-discrimination measures, a number of legal and institutional efforts have been made in order to ensure persons with disabilities have access to higher education and equal opportunities for learning. Since 2005, the Support Programme for Students with

Disabilities in Higher Education has provided helpers to assist such students with mobility, writing, note-taking, translation into sign language, etc.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

☒ Provision of education for persons who have not received or completed the whole period of their primary education

☒ Provision of literacy programmes

☒ Provision of appropriate learning and life-skills programmes

☒ Provision of free of charge learning opportunities

☒ Provision of flexible learning pathways

☒ Provision of professional training and qualifications

☐ Other:

- Please elaborate further on the measures taken:

☒ Provision of education for persons who have not received primary education

- Educational attainment recognition: when an adult learner (older than 18) completes a literacy education programme provided or recognized by regional offices of education, after examination of the person's educational attainment, they can receive recognition as having achieved a primary or secondary level of education. (Composition and operation of the Deliberative Committee of Literacy Education, based on article 40 of the Lifelong Education Act and article 76 of the Enforcement Decree of the Lifelong Education Act)

- Pursuant to article 28 of the Lifelong Education Act, lifelong educational institutions are established in order for adults, working youth, school drop-outs, etc. to have a second chance to obtain education. Details on the operation of such lifelong educational institutions and school-type lifelong educational establishments are included in the same law.

- The partial revision of the Lifelong Education Act in 2016 has provided the basis for establishment of national and regional literacy education centres, enabling stable provision of literacy education across regions.

■ Provision of literacy programmes

- Article 39 of the Lifelong Education Act has provided the basis for financial support and implementation of literacy education so that the national and regional governments can help adult learners to improve their basic literacy ability necessary for participation in society.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

■ Establishment of minimum norms and standards in education

■ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)

■ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

■ Minimum norms and standards to ensure equity in education by eliminating discrimination as a result of economic poverty, sexuality, disability, immigration background, etc.

- Article 2 (Basic Principle) and article 4 (Responsibilities of State and Local Governments) of the Act on Prevention of Child Poverty, Support of Children, etc. states that legal and institutional measures should be put in place to enable impoverished children to have a balanced and harmonious upbringing and enjoy a healthy and happy life, irrespective of their parents' social or economic status.

- The Act on the Prohibition of Discrimination against Persons with Disabilities, Remedy against Infringement of their Rights, etc. states that its purpose is to prohibit discrimination on the basis of disability in all aspects of life, and to effectively safeguard the rights and interests of individuals discriminated against on the ground of disability, thus enabling them to fully participate in society, and establishing their right to equality, to ensure their human dignity and sense of value.

- Article 3 (Responsibilities of State and Local Governments) and article 3-2 (Establishment of Master Plans for Supporting Multicultural Families) of the Multicultural Families Support Act stipulate that the State and local governments shall develop systems and pave the way for conditions necessary to help multicultural family members enjoy a stable family life and fulfil their roles and responsibilities as members of society, and that they shall establish and implement policies for this.

- Article 1 (Purpose) and article 5 (Obligations of State, etc.) of the Framework Act on Gender Equality state that the purpose of this Act is to realize gender equality in all areas, such as politics, economy, society, and culture, by providing for basic matters with regard to the obligations, etc., of the State and local governments to implement the principle of gender equality.

- Article 59 (Integrated Education) of the Elementary and Secondary Education Act states that where any person who needs special education intends to receive education at an elementary school, middle school, high school, or any type of school equivalent thereto, the State and local government shall establish policies necessary for conducting integrated education, such as providing for separate admission procedures and curricula.

■ Establishment of conditions relating to the quality of the education provided

- Infrastructure to ensure equity in education includes: provision of transportation to support mobility of students with disabilities, assistance with transportation costs, remote learning for students with disabilities, a mobile education system, and provision of other facilities for students with disabilities, all of which aim to enhance access to education and to increase the participation of youth with disabilities. Infrastructure to ensure access to education for students with an immigrant background includes the operation of schools with multicultural education policies, Korean language classes, and special multicultural classes. In addition, the establishment and operation of education welfare offices provide students from economically disadvantaged populations with counseling on adaptation to school life and academic support.

- In terms of teaching and learning materials provided to ensure equity in education, the Korea National Institute for Special Education develops various forms of teaching and learning support content and websites for different levels of education in order to eliminate educational gaps and ensure that students who are targets of special education can exercise their right to education. Various supplementary materials are also provided so that the needs of students with disabilities can be catered for within the basic curriculum.

■ Legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools)

- The Act on the Prevention of and Countermeasures against Violence in Schools aims to protect the human rights of students and ensure that students develop into healthy members of society through the provision of measures to prevent and resolve violence in schools, to protect students that are victims of such violence, to guide and educate students that perpetrate such violence, and to mediate between victims and perpetrators. This Act provides for the establishment of the Committee for Countermeasures against School Violence under the jurisdiction of the Prime Minister, and states that the Minister of Education should set the policy direction and goals for the prevention and resolution of school violence every 5 years. In addition, the Act provides that the Superintendent of the Office of Education within each city/province shall establish and operate an exclusive unit for the prevention and solution of school violence and conduct a fact-finding survey at least twice a year to ascertain the current situation relating to school violence and formulate efficient measures to prevent school violence.

- Pursuant to the above-mentioned Act, the 4th Basic Plan for Prevention of and Countermeasures against Violence in Schools was established in January 2020, with the vision of 'happy schools made by everyone'. This five-year plan consists of 14 projects in 5 areas of action, including prevention of school violence by enhancing the capacities of the school community, strengthening of equitable and educational actions to address school violence, strengthening remedial systems and the measures in place to protect victims of school violence, reinforcing education and guidance for wrongdoing students, and establishing social systems for prevention of school violence.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☒ Measures taken to increase women in leadership positions in education

☐ Other:

- Please briefly elaborate further on the measures taken:

- ☒ **Teachers' average salaries**
 - Average teacher salaries are at a competitive level or at least at a similar level to salaries for other occupations that are similar or require equivalent qualifications to teachers. According to the Ministry of Employment and Labor's Survey on Labor Status by Employment Type (2019), in 2018, the average salary of a graduate from a four-year college in the Republic of Korea amounted to 3,748,000 KRW, which makes the salary of a newly appointed educational officer slightly below the average. However, the overall average salary for educational officers in general is above the general average salary.
- ☒ **Initial training and continuous professional development**
 - Initial training and continuous professional development is provided in order to improve classroom and working conditions for teachers. Although the mandatory amount of time for teachers' training is not defined, educational officers are required to study on an ongoing basis and cultivate themselves so that they can carry out their roles. Article 37 (Equal Training Opportunities) of the Educational Officials Act states that each public educational official shall be accorded equal opportunities to receive continuing education and training at training institutions, and stipulates that public educational officials shall continuously make efforts to study and improve themselves so that they can perform their duties.
- ☒ **Minimum standards and qualifications are required for the teaching profession**
 - Graduates from universities or industrial universities who have attained teaching experience and relevant credits are eligible for the teaching profession. Article 21 (Qualifications for Teachers) of the Elementary and Secondary Education Act and article 22 (Qualifications for Teaching Staff) specify the detailed qualifications.
- ☒ **Measures taken to strengthen the social status and attractiveness of the teaching profession**
 - Various pension, welfare and leave of absence systems for public officials, or systems equivalent to those for public officials, apply to teachers. Educational officers benefit from a public official pension scheme, or pension for private school educators, and various

welfare policies. In addition, article 44 (Temporary Suspension from Office) of the Educational Officials Act provides that public educational officials can be temporarily suspended from office and retain their status, instead of being dismissed, if they take time off for various reasons, such as child care, participation in training, studying abroad, etc.

- Selected teachers who have been evaluated as outstanding in appraisals for professional development and who meet certain other criteria are awarded a special one-year sabbatical for special training. This special training year allows teachers to continue their self-development and offers an opportunity to refresh themselves, with the aim of strengthening the competitiveness of the teaching profession and contributing to the advancement of the school system.

■ Performance monitoring systems

- The performance monitoring system aims to evaluate educational officers systematically and regularly, so that the results can be used for personnel management and to enhance the performance of the teaching profession.

- Article 40-2 (Appointments and Promotions) of the State Public Officials Act states that the head of each agency shall prepare the list of candidates for promotion by class in the order of service record, career rating, and other actual proof of ability, as prescribed by Presidential Decree. Article 51 (Rating of Service Records) of the same Act states that any person whose service record rating is excellent may either receive a bonus, or a special promotion. Regulations on the Performance Evaluation, etc. of Public Officials (a Presidential Decree) and various regulations from the Ministry of Personnel Management give the basis for performance evaluation of educational officials.

■ Measures taken to increase women in leadership positions in education

- At the level of secondary education, plans have been established and are being carried out under the supervision of the Ministry of Education to ensure that female educational officials comprise 40% of all school principals and vice-principals, as a policy to expand gender-equality in terms of appointment of teachers.

- At the level of higher education, a quota system is being implemented for the appointment of female professors in national and public universities.

- Following a revision of the Educational Officials Act and Decree on the Appointment of Public Educational Officials, measures for affirmative action have been put in place under the principle that the appointment of educational officials to national and public universities should have a gender balance. These policies include allocation of a specific number of positions to women, and establishment of the Committee on Gender-equality in the Appointment of University Educational Officers.

- As of 2016, while the percentage of female professors was 25% in private universities, it was 15.4% in national and public universities. In order to close the gap, a goal has been set to increase the proportion of female professors in national and public universities to more than 18% by 2022. Awareness-raising and motivational measures have been carried out in order to attain the goal, and gender-equality has been set as a key element in information disclosure requirements, which offers an incentive to appoint more female professors.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

■ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☒ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

☒ Yes No ☐

- Please provide a brief description:

☒ Laws and regulations regarding establishment and operation of private educational institutions:

- Article 10 (Permission to Establish) of the Private School Act states that anyone who intends to establish a private primary school, private middle school, private high school, private high technical school, private civic school, private higher civic school, private school for the handicapped, private kindergarten, or other equivalent school shall make an endowment of a set amount of assets for the establishment, and obtain permission from the Minister of Education, as prescribed by Presidential Decree.

- Article 8 (Establishment, etc. of Kindergartens) of the Early Childhood Education Act states that, if any person who has established and operated a private kindergarten intends to close the kindergarten or to modify any important matters prescribed by Presidential Decree, he/she shall obtain authorization from the Superintendent of the Office of Education. The Early Childhood Education Act specifies the organization and operation of Kindergarten Operation Committees, and regulations with regard to the operation of private kindergartens, such as kindergarten tuition fees.

- Article 4 (Establishment of Schools) of the Elementary and Secondary Education Act stipulates that any person who intends to establish a private school or any person who has established and manages a private school and intends to close the school or modify

¹¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

important matters prescribed by Presidential Decree, shall obtain authorization from the Superintendent of the Office of Education.

- Article 4 (Establishment, etc. of Schools) of the Higher Education Act states that if any founder or operator of a private higher education institution intends to abolish the school or modify important matters prescribed by Presidential Decree, he/she shall obtain authorization from the Minister of Education.

- Article 2 (Standards for Authorization to Establish) of the Regulations for Establishment and Operation of Universities specifies the standards for establishment and required conditions such as facilities, educators, basic assets, etc. with regard to establishment and operation of universities, industrial colleges, teachers' colleges, technical colleges and other equivalent schools. Article 2-2 (Standards for Establishment of Graduate Schools, etc.) stipulates the criteria for establishing graduate schools, and their departments or courses.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹² explicitly apply to private educational institutions?

☒ Yes No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

■ Laws regarding Autonomous Private High Schools include provisions that the private education provided in such schools does not generate discrimination and that such private schools offer a relevant alternative.

- In order to prevent discrimination based on economic status, article 91-3 (Autonomous Private High Schools) states that an autonomous private high school shall select at least 20 percent of students from economically deprived groups such as qualified recipients referred to in subparagraph 1 of article 2 of the National Basic Living Security Act, or his/her children; a person designated by the Superintendent of the Office of Education, who falls under the second-poorest class referred to in subparagraph 10 of article 2 of the National Basic Living Security Act, or his/her children; or other persons as particularly deemed necessary by the Superintendent of the Office of Education to ensure educational equality.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☒

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation protect the right to education of national minorities

☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue

¹²

See: Article/Paragraph 1(1).

- Curriculum is adapted to national minority needs
- Teachers are trained to adapt to national minority needs
- Other:

- Please provide a brief description of the provisions:

- Legal measures that protect the rights given to national minorities
 - Article 10 (Care and Education for Children and Juveniles) of the Multicultural Families Support Act states that neither the State nor local governments shall discriminate against children and juveniles of any multicultural family in providing care and education services for children and juveniles; that the State and local governments shall prepare measures for educational assistance to children and juveniles of multicultural families to help them quickly adapt to school life; that the Superintendent of the Office of Education in each region may provide children and juveniles of multicultural families with extracurricular or after-school educational programs; and that the State and local governments shall endeavor to support preschool care and education services for members of multicultural families under 18 years of age, and to help such members develop language skills, may provide assistance necessary for improving their linguistic proficiency, such as teaching materials and learning support for the teaching of the Korean language and the mother tongue of their father or mother who is a marriage migrant.
- Teacher training to ensure the educational rights of national minorities
 - According to article 5 (Enhancement of Understanding of Multicultural Families) of the Multicultural Families Support Act, the Minister of Education, and the Superintendent of each regional Office of Education, shall conduct training on understanding of multiculturalism for educational officials. In addition, article 10-2 (Training Related to Education on Understanding Multiculturalism) of the Enforcement Decree of the Multicultural Families Support Act states that when the Minister of Education formulates and implements a plan to provide training to educational officials, he/she shall include in such plan content related to education on understanding multiculturalism; and that the Superintendent of the Office of Education in each region shall formulate and implement an annual plan to provide teachers with training related to education on understanding multiculturalism.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

- Pursuant to article 10 (Care and Education for Children and Juveniles) of the Multicultural Families Support Act, the State and local governments must endeavor to support preschool care and education services for members of multicultural families under 18 years of age, and to help such members develop language skills, may provide assistance necessary for improving their linguistic proficiency, such as teaching materials and learning support for the teaching of the Korean language and the mother tongue of their father or mother who is a marriage migrant. The government must also establish support plans for multicultural education every year, and support bilingual education by carrying out bilingual speech contests and creating bilingual-friendly environments.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹³ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁴ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

■ **Protecting the educational rights of refugees and immigrants**

- Under article 33 (Assurance of Education) of the Refugee Act, a recognized refugee and any child of such refugee who is a minor under the Civil Act shall receive the same elementary education and secondary education as citizens of the Republic of Korea. Recognized refugees can be given support to receive necessary education in consideration of their age, learning ability, educational conditions, etc.

- Article 13 (Education-Related Support) of the Enforcement Decree of the Refugee Act states that recognized refugees and their children may enter schools as prescribed in Article 2 of the Elementary and Secondary Education Act or apply for transfer admission; and that the Minister of Justice may recommend persons among recognized refugees and their children who are in need of subsidization of educational costs to the Minister of Education as prescribed by Ordinance of the Ministry of Justice.

■ **Policy framework that protects the right to quality education for refugees and migrants**

- Support programmes for immigrant youth include counseling and career guidance programmes for youth from multicultural families. These programmes help to enhance adaption to society by immigrant youth, and to enhance the general public's understanding of multicultural society.

- Mentoring programmes for students from multicultural families have been established under which undergraduate students help mentee students to better adapt to their school life, which in turn helps enhance their ability to learn effectively.

- Home visiting education services for multicultural families dispatch instructors to those who cannot participate in classes. These instructors provide education on the Korean language, parenting, child care, etc to multicultural families.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

■ Inclusion in mainstream education

■ Provision of language courses

■ Specific training for educational staff

■ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)

¹³ Articles/Paragraphs 1 and 3.

¹⁴ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

- Accelerated learning programmes
- Non-formal and/or alternative education programmes
- Financial support
- Other innovative measures:

Please briefly elaborate further on the measures taken:

- Inclusion in mainstream education
 - Supporting access to public education for immigrant students (by strengthening the provision of information and guidance on entering school, and operating the Deliberation Committee on Academic Ability, the aim of which is to support the entrance of children from refugee families and children without family into public schools)
 - Operating special multicultural classes, and putting in place a basis for recognizing immigrant students' academic level
 - Operating schools with a policy of multicultural education (at kindergarten, primary and secondary school level, with Korean language classes)
 - Expanding multicultural education for all students (the 2015 revised curriculum outlines interdisciplinary learning topics such as multicultural education, in order to increase students' multicultural sensitivity.)
 - Operating special districts with globalized education (enhancing the educational environment in areas where immigrants are concentrated, and closing the gaps among different educational environments)
- Provision of language courses
 - Providing Korean language education through Korean language classes
 - Supporting students from multicultural families during their transition to upper schools
 - Developing supplementary learning materials
 - Supporting bilingual education (National Bilingual Speech Contest, etc.)
- Specific training for educational staff
 - Mandatory training on multicultural understanding for educational officials is carried out annually, and Superintendents of Offices of Education are obligated to plan and implement training on multicultural understanding for educational officials.
- Financial support
 - Support for childcare centre tuition for children of 0 to 5 years from multicultural families.
 - Article 13 of the Enforcement Decree of the Refugee Act states that the Minister of Justice may recommend persons among recognized refugees and their children who are recognized under paragraph 4 of article 60 of the Elementary and Secondary Education Act as requiring support to pay educational costs to the Minister of Education as prescribed by Ordinance of the Ministry of Justice.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and

practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- Need to ameliorate discriminatory culture and increase awareness of it
- Practical difficulties in guaranteeing educational opportunities for vulnerable groups (e.g. students with disabilities and low income groups)
- Challenges in reinforcement of lifelong education policies for adulthood and at each stage of the life cycle

- Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- Low readiness of faculty and support personnel for inclusive education (lack of training and professional development opportunities)
- Insufficient physical infrastructure
- Focus on additional services rather than core services in terms of education
- Lack of involvement of vulnerable groups in curriculum development and management

- Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- Limited budget (lack of faculty and support staff, regional differences in support, etc.)
- Lack of outcomes in terms of proclamations of legislation and the actual state of education in practice (linked to the issue of governance reform)
- Insufficient guarantee of participation by policy recipients in policy establishment and execution

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

- The compulsory and free education policies expand educational opportunities. Also, free lunch and half-price tuition policies have contributed to reducing the risks of exclusion from educational opportunities due to economic difficulties.
- The Republic of Korea has tried to guarantee educational opportunities for vulnerable groups (e.g. students with disabilities and from low-income families), and has improved the educational situation for agricultural, mountain and fishing villages, as well as underdeveloped cities and overcrowded school areas.
- Results have been achieved in solving issues such as school drop-outs and difficulties in adapting to the school environment.
- Projects related to global citizenship education (GCED) and democratic citizenship education (e.g. human rights education, citizenship education, unification education, education to improve awareness about disabilities, peace education, environmental education, etc.) have contributed to fostering awareness.
- There is still a need to promote students' voluntary participation in learning—through measures such as innovative schools and the 'free semester system (test-free semesters)— and ultimately to expand this into policies for individualized and inclusive education.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

■ Translation of the Convention/Recommendation into the national and possibly local languages

■ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education

☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education

■ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other:

--